

Court No. - 36

Case :- WRIT - C No. - 45990 of 2012

Petitioner :- Paschimanchal Vidyut Vitran Nigam Ltd. And
Another

Respondent :- The Electricity Ombudsman And Another

Petitioner Counsel :- Nripendra Mishra

Hon'ble Vineet Saran,J.

Hon'ble Mushaffey Ahmad,J.

As prayed by learned counsel for the petitioners, put up on
13.09.2012 as a fresh case.

Order Date :- 11.9.2012

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(Mushaffey Ahmad, J) (Vineet Saran, J)

Court No. - 32

Case :- WRIT - C No. - 45990 of 2012

Petitioner :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- The Electricity Ombudsman And Another

Petitioner Counsel :- Nripendra Mishra

Hon'ble Sunil Ambwani,J.

Hon'ble Aditya Nath Mittal,J.

As prayed, list the case in the next cause list.

Order Date :- 17.10.2012

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Court No. - 10

Case :- WRIT - C No. - 45990 of 2012

Petitioner :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- The Electricity Ombudsman And Another

Counsel for Petitioner :- Nripendra Mishra

Hon'ble Arun Tandon,J.

Hon'ble Harsh Kumar,J.

Counter affidavit filed by Sri B.C. Rai, Advocate on behalf of respondent no. 2 is taken on record.

Issue notice to respondent no. 1 fixing 16th March, 2016 as the date. Petitioner to take steps by speed post within a week.

List on the date fixed.

On behalf of the petitioner it is submitted that the Electricity Supply Code 2005 provides for the mechanics for challenging the correctness or otherwise of the bills issued by the licensee under clause 6.5. The proceedings, which had been initiated before Consumer Grievance Redressal Forum by respondent no. 2 for questioning the supplementary bill, which was issued in the matter of consumption of electricity, was not maintainable. For the same reason, the Electricity Lokpal also did not have the competence to enter into the correctness or otherwise of the bill so issued. Reference in support has been made to the judgment of the Apex Court in the case of Uttar Pradesh Power Corporation Limited and others vs. Anis Ahmad, reported in (2013) 8 SCC 491.

The matter does require enquiry by this Court.

Till the next date of listing the order passed by the Electricity Lokpal dated 23rd June, 2011 shall remain stayed.

Order Date :- 17.2.2016

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Court No. - 10

Case :- WRIT - C No. - 45990 of 2012

Petitioner :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- The Electricity Ombudsman And Another

Counsel for Petitioner :- Nripendra Mishra

Hon'ble Arun Tandon,J.

Hon'ble Harsh Kumar,J.

Office may submit a report with regard to service of notice upon respondent no.1 by 5.4.2016.

List on 5.4.2016.

Interim order to continue till then.

Order Date :- 16.3.2016

vs/bhanu

Chief Justice's Court

Case :- WRIT - C No. - 45990 of 2012

Petitioner :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- The Electricity Ombudsman And Another

Counsel for Petitioner :- Nripendra Mishra

Hon'ble Dr. Dhananjaya Yeshwant Chandrachud, Chief Justice

Hon'ble Yashwant Varma, J.

List after four weeks.

Interim order, if any, is extended till the next date of listing.

Order Date :- 5.4.2016

VMA

(Dr. D.Y. Chandrachud, C.J.)

(Yashwant Varma, J.)

Court No. - 32

Case :- WRIT - C No. - 45990 of 2012

Petitioner :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- The Electricity Ombudsman And Another

Counsel for Petitioner :- Nripendra Mishra

Counsel for Respondent :- Bidhan Chandra Rai

Hon'ble Shashi Kant Gupta,J.

Hon'ble Rajiv Gupta,J.

As prayed by the learned counsel for the petitioners, the case is passed over today.

List the matter in the next cause list.

Interim order, if any, shall continue till the next date of listing.

Order Date :- 6.7.2018

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Court No. - 32

Case :- WRIT - C No. - 45990 of 2012

Petitioner :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- The Electricity Ombudsman And Another

Counsel for Petitioner :- Nripendra Mishra

Counsel for Respondent :- Bidhan Chandra Rai

Hon'ble Shashi Kant Gupta,J.

Hon'ble Rajiv Gupta,J.

As prayed, list in the next cause list.

Interim order, if any, shall continue till the next date of listing.

Order Date :- 13.7.2018

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Court No. - 32

Case :- WRIT - C No. - 45990 of 2012

Petitioner :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- The Electricity Ombudsman And Another

Counsel for Petitioner :- Nripendra Mishra

Counsel for Respondent :- Bidhan Chandra Rai

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

As prayed by learned counsel for the petitioners,
list this matter on 06.08.2018.

Order Date :- 27.7.2018

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Court No. - 32

Case :- WRIT - C No. - 45990 of 2012

Petitioner :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- The Electricity Ombudsman And Another

Counsel for Petitioner :- Nripendra Mishra

Counsel for Respondent :- Bidhan Chandra Rai

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

Learned counsel for the petitioners prays for and is granted three weeks' time to file supplementary affidavit.

List thereafter.

Order Date :- 6.8.2018

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Court No. - 32

Case :- WRIT - C No. - 45990 of 2012

Petitioner :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- The Electricity Ombudsman And Another

Counsel for Petitioner :- Nripendra Mishra

Counsel for Respondent :- Bidhan Chandra Rai

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

As prayed by learned counsel for the petitioner, two weeks' further time is allowed to file supplementary affidavit in the matter.

List thereafter.

Order Date :- 11.9.2018

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Court No. - 42

Case :- WRIT - C No. - 45990 of 2012

Petitioner :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- The Electricity Ombudsman And Another

Counsel for Petitioner :- Nripendra Mishra

Counsel for Respondent :- Bidhan Chandra Rai

Hon'ble Suneet Kumar,J.

Hon'ble Rajendra Kumar-IV,J.

Learned counsel for the petitioners seeks adjournment for today.

It appears that learned counsel for the petitioners is not interested in arguing the matter.

The matter is pending for last ten years.

Accordingly, the writ petition is dismissed for want of prosecution.

Interim order, if any, stands vacated.

The order has been passed in the presence of Sri Bidhan Chandra Rai, learned counsel respondents.

Order Date :- 15.3.2023

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